

PRIOR YEAR FILING — 2024 TAX RETURN (SUPERSEDED)

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Taxpayer: Liu Wei
SSN: XXX-XX-1827
Tax Year: 2024

SUPERSEDED NOTICE

This document reflects TY 2024 analysis using the PFIC passive income threshold that was in effect as of that year (40%).

superseded_by: [irs_2026_guidance.html](#) (u1 update)
New threshold effective TY 2026: 50% (see IRS 2026 guidance)

DO NOT use the 40% threshold from this document for TY 2026 analysis.
The IRS updated the PFIC passive income threshold in 2025 guidance, effective for tax years beginning 2026.

PFIC Analysis (TY 2024 — OUTDATED)

DE Immobilien AG (DEIMM):
Passive income threshold used: 40% (OLD THRESHOLD — SUPERSEDED)
Passive income %: 53.52%
Result: PFIC applies (based on 40% threshold — OLD ANALYSIS)

IMPORTANT: The 40% threshold used in this 2024 analysis is superseded.
For TY 2026, use the revised 50% threshold from IRS 2026 guidance.
The conclusion (PFIC applies) happens to be the same under both thresholds for this holding, but you must cite the current 50% threshold in TY 2026 work.

Income Summary (TY 2024 — for reference only)

Wages:	\$178,000
Dividends:	\$3,920
Capital Gains:	\$10,100
German Rental (estimated):	\$16,800 (unconfirmed — NOT to be used for TY 2026)
Total:	\$208,820

Preparer: Mercator Tax LLP
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